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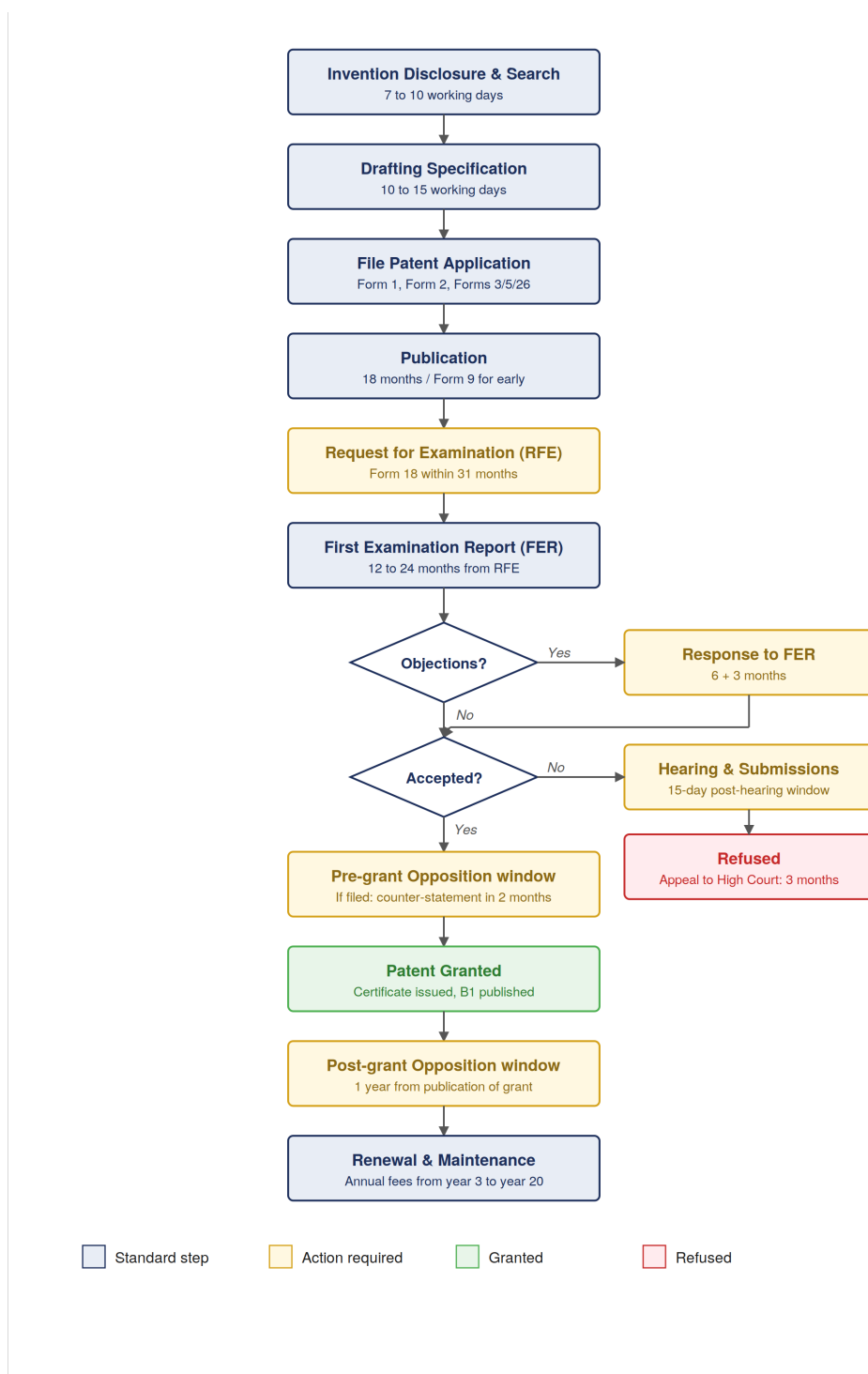
Patent Process in India

*A step-by-step guide to filing, prosecution,
and grant of patents under the Patents Act, 1970*

Patent Process in India

Process flowchart and overview

This guide walks you through the patent process in India under the Patents Act, 1970, as amended by the Patents (Amendment) Rules, 2024 effective 15 March 2024.



Patent Process in India

A step-by-step guide. What happens, how long it takes, and the deadlines that matter.

Step 1 Invention Disclosure and Prior Art Search

We begin by capturing the technical essence of your invention through a structured Invention Disclosure Form (IDF), and conduct an inventor interview where additional clarity is needed. Once the disclosure is complete, we perform a comprehensive prior art search across global patent databases and non-patent literature to assess novelty and inventive step. The output is a search report, with an optional patentability analysis that helps you make an informed decision before committing to drafting and filing.

Read more: [conducting an Indian patent search](#)

Timeline: 7 to 10 working days for disclosure intake. Comprehensive search adds 5 to 8 days.

Step 2 Drafting Strategy and Specification Preparation

Based on the search results and your commercial timeline, we recommend the appropriate filing route: a Provisional Specification under Section 9 of the Patents Act when the invention is still being refined, or a Complete Specification under Section 10 when the invention is fully developed. A Provisional Application secures an early priority date and gives you 12 months to file the Complete Specification. The Complete Specification must fully disclose the invention and contain claims that define the scope of protection sought.

Read more: [provisional patent application](#)

Timeline: First draft: 10 to 15 working days. Final draft after your review: 3 to 5 days.

Important deadline

If a Provisional Application is filed, the Complete Specification must be filed within 12 months under Section 9. Missing this deadline causes the application to be deemed abandoned with no extension available.

Read more: [non-provisional \(complete\) patent](#)

Step 3 Preparing Filing Documents and Forms

Alongside drafting, we prepare the documentation required to file. This includes Form 1 (Application for Grant of Patent), Form 2 (Provisional or Complete Specification), Form 3 (Statement and Undertaking regarding foreign applications), Form 5 (Declaration as to Inventorship for complete specifications), Form 26 (Power of Attorney where filing through a patent agent), and Form 28 if claiming small entity or startup status. We will request the required signatures and supporting documents from you well before filing.

Read more: [naming the applicant correctly](#)

Timeline: Document preparation runs in parallel with drafting.

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Filing, publication, and request for examination

Step 4 Filing the Patent Application

We file your application electronically through the Indian Patent Office e-filing portal at ipindiaonline.gov.in. The application is assigned a unique application number and the filing date is recorded immediately. This filing date becomes your priority date, which establishes your rights against later applications for the same or similar invention. We share the official acknowledgement with you on the same day.

Read more: [patent filing procedure in India](#)

Timeline: *Same day filing once documents are signed and ready.*

Step 5 Publication of the Application

Under Section 11A of the Patents Act, every application is published in the Patent Office Journal after the expiry of 18 months from the filing date or priority date, whichever is earlier. Publication triggers the pre-grant opposition window and confers provisional rights on the applicant. If your commercial timeline requires earlier publication, we can file a request for early publication using Form 9, which typically results in publication within one month.

Read more: [early patent publication in India](#)

Timeline: *Standard publication: 18 months from filing or priority date. Early publication via Form 9: typically 1 month.*

Step 6 Request for Examination (RFE)

Indian patent applications are not examined automatically. A formal Request for Examination must be filed via Form 18 under Section 11B. The Patents (Amendment) Rules, 2024 reduced the RFE deadline from 48 months to 31 months from the priority or filing date for applications filed on or after 15 March 2024. For PCT national phase entries this means the RFE is now typically filed simultaneously with national phase entry. Eligible applicants (startups, small entities, educational institutions, and others) can file Form 18A for expedited examination.

Read more: [patent request for examination](#)

Timeline: *RFE must be filed within 31 months. Examination report typically issues 12 to 24 months thereafter.*

Important deadline (changed in 2024)

RFE deadline: 31 months from priority or filing date for applications filed on or after 15 March 2024. For applications filed on or before 14 March 2024, the earlier 48-month deadline continues to apply. The RFE deadline cannot be extended retrospectively. Missing this deadline causes the application to be deemed withdrawn.

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Examination, response, and hearing

Step 7 First Examination Report and Response

Once examination begins, the examiner reviews the application against the patentability criteria (novelty, inventive step, industrial applicability, and non-exclusion under Section 3) and issues a First Examination Report (FER). The FER typically raises substantive objections, formal objections, and Section 8 compliance queries. We prepare a detailed written response addressing each objection, with supporting arguments, claim amendments where appropriate, and any required affidavits or declarations.

Read more: [patent first examination report in India](#)

Timeline: FER issuance currently 12 to 24 months from RFE filing. Response preparation typically 4 to 8 weeks.

Important deadline

The application must be placed in order for grant within 6 months from the date of issuance of the FER under Rule 24B. This 6-month period can be extended by up to 3 months by filing Form 4 with the prescribed fee. Under the 2024 amendments, the extension request can now be filed during the extension period itself. Missing the final deadline causes the application to be deemed abandoned.

Step 8 Hearing before the Controller (if required)

If the Controller is not satisfied with the written response, a hearing is scheduled before the application is refused. We attend on your behalf, present arguments, and may file written submissions afterwards. If the Controller still refuses the application, the order can be appealed to the High Court within 3 months of communication of the order, following the abolition of the Intellectual Property Appellate Board (IPAB) in 2021.

Read more: [patent first examination report and hearing process](#)

Timeline: Hearing typically scheduled within 4 to 8 weeks of issuance of hearing notice.

Important deadline

Written submissions after hearing must be filed within 15 days of the hearing date. Appeals from a refusal order go to the relevant High Court within 3 months from communication of the order under Section 117A.

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Opposition windows and grant

Step 9 Pre-Grant Opposition (if challenged)

Between publication and grant, any person can file a representation by way of pre-grant opposition under Section 25(1) on grounds such as wrongful obtainment, prior publication, prior claim, prior public knowledge or use, obviousness, non-patentable subject matter, insufficient disclosure, or non-compliance with Section 8. Under the 2024 amendments, the Controller first decides the maintainability of the opposition. If found maintainable, we file a counter-statement and evidence on your behalf within the prescribed period.

Read more: [patent opposition proceedings in India](#)

Timeline: Counter-statement and evidence: 2 months from receipt of opposition notice (reduced from 3 months under 2024 amendments).

Important deadline

Reply Statement and evidence must be filed within 2 months from the date of notice of opposition under the amended Rule 55. Missing this deadline can result in adverse consequences for the application. A pre-grant hearing fee of approximately INR 7,500 is now applicable under the 2024 amendments.

Step 10 Grant of Patent and Certificate

Once all objections are resolved and any opposition is decided in your favour, the Controller passes an order to grant the patent under Section 43. The grant is notified in the Patent Office Journal and a Certificate of Grant is issued. The patent is then entered on the Register of Patents and the granted specification (B1 publication) is published. Your patent rights run from the original filing date and are enforceable from the date of grant. The patent term is 20 years from the date of filing or priority, whichever is earlier.

Read more: [granted patent specification \(B1\) in India](#)

Timeline: From placing in order for grant to certificate issuance: typically 4 to 8 weeks.

Patent rights conferred

On grant, you receive exclusive rights to prevent third parties from making, using, selling, offering for sale, or importing the patented invention in India for the 20-year term. You may use the suffix 'Patented' on your products and license, assign, or enforce the patent against infringers.

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Post-grant defence and renewal

Step 11 Post-Grant Opposition (if challenged)

After grant, any 'person interested' may file a post-grant opposition under Section 25(2) on substantially the same grounds as a pre-grant opposition. The Controller constitutes an Opposition Board of three members which examines the matter and submits a recommendation. Both parties exchange evidence, attend a hearing, and the Controller passes a reasoned order to maintain, amend, or revoke the patent. The order can be appealed to the relevant High Court.

Read more: [patent opposition proceedings in India](#)

Timeline: *Reply statement and evidence: 2 months from receipt of opposition. Opposition Board recommendation: within 2 months (reduced from 3 months under 2024 amendments).*

Important deadline

Post-grant opposition must be filed within 1 year from the date of publication of grant of the patent under Section 25(2). After this 1-year window, the only route to challenge a granted patent is by way of revocation petition under Section 64 before the relevant High Court.

Step 12 Renewal and Maintenance

To keep the patent in force, annual renewal fees must be paid from the third year onwards under Section 53. No renewal fee is payable for the first two years from filing. Renewal fees can be paid annually or in advance for two or more years. Under the 2024 amendments, a 10% fee reduction applies if renewal fees are paid in advance for at least 4 years. Patentees must also file a Statement of Working (Form 27) once every three financial years, starting from the financial year after the year of grant.

Read more: [patent renewal in India](#)

Timeline: *Renewal fees due before expiry of each year (from year 3). Form 27 working statement: every 3 financial years.*

Important deadlines

Renewal fees must be paid before expiry of the relevant year. If the patent is granted later than 2 years from filing, accrued renewal fees must be paid within 3 months from the date of recording of grant (extendable up to 9 months). Missed renewal causes the patent to lapse, but restoration can be applied for within 18 months from the date of cessation under Section 60.

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Quick reference: key deadlines and forms

This summary brings together the most important statutory deadlines and forms you will encounter during the patent registration journey. Always confirm specific timelines with your attorney as some are calculated from priority dates, filing dates, or events such as receipt of an examination report.

Key statutory deadlines:

Event	Deadline	Source
Complete Specification after Provisional	12 months from provisional filing	Section 9
PCT National Phase Entry in India	31 months from priority date	Rule 20(4)(i)
Request for Examination (RFE)	31 months from priority/filing (post 15 Mar 2024)	Rule 24B
Response to FER	6 months from FER, extendable by 3 months	Rule 24B(5)
Pre-grant Opposition	Anytime between publication and grant	Section 25(1)
Reply to Pre-grant Opposition	2 months from notice	Rule 55(4)
Post-grant Opposition	12 months from publication of grant	Section 25(2)
Reply to Post-grant Opposition	2 months from receipt	Rule 57
Patent Renewal (Annual)	Before expiry of each year (from year 3)	Section 53
Form 27 Working Statement	Every 3 financial years, within 6 months of FY end	Section 146(2)
Restoration of Lapsed Patent	18 months from cessation	Section 60
Appeal to High Court	3 months from communication of order	Section 117A

Key forms used in patent prosecution:

Form	Purpose
Form 1	Application for Grant of Patent
Form 2	Provisional or Complete Specification
Form 3	Statement and Undertaking regarding foreign applications (Section 8)
Form 5	Declaration as to Inventorship
Form 9	Request for Early Publication
Form 18	Request for Examination (ordinary)
Form 18A	Request for Expedited Examination
Form 26	Power of Attorney to Patent Agent
Form 27	Statement of Working of Patented Invention
Form 28	Claim for Small Entity or Startup status